7/10/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-G-0073 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas service.

PUBLIC STATEMENT HEARING

DATE: July 10, 2025 at 1 p.m.

LOCATION: 1776 Eastchester Rd
Bronx, New York 10461

BEFORE: ALJ NICHOLAS PLANTY
ALJ JAMES COSTELLO

REPORTED BY JOHN SHEFFIELD

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(The hearing commenced at 1:02 P.M.)

ALJ COSTELLO: Okay. I call case number 25-E-0072. Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service, and case number 25-G-0073, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

Good afternoon, everyone. My name is James Costello, and with me is Nicholas Planty. We are two of the three administrative law judges that are assigned to preside over these hearings and also to establish the evidentiary record for the Commission's consideration.

The public statement hearing is being held on behalf of the New York State Public Service Commission regarding the proposed changes in the electric and gas delivery rates and practices of Consolidated Edison Company of New York. And just, you know, some people confuse us sometimes. They think we're here on behalf of the company. We're

not. We're Department of Public Service employees. So we represent the Department of Public Service, and we're here on behalf of the Public Service Commission.

Before we get to your comments, I just want to give you some brief information. So under New York State law, the Public Service Commission is required to consider Con Edison's rate proposals and may adopt them or reject them in whole or in part, or it may modify them. The Public Service Commission has seven members the chairperson, Rory Christian, and six commissioners James Alessi, David Valesky, John Maggiore, Uchenna Bright, Denise Sheehan and Radina Valova.

In making its decision, the Commission will consider the evidentiary record that is compiled in these cases and the comments made at this and other public statement hearings. As I said, the purpose of today's hearing is to provide you with an opportunity to share your opinions on the company's rate files with the Commission. The topic of today's event is limited to these particular rate cases. This is not the proper forum to raise issues that are

unrelated to the company's rate case filings. If you have specific issues about your Con Edison account, Con Edison has provided information on a table that is located outside of this meeting room, and it provides a dedicated phone number and email for customers to get assistance related to specific customer service and billing inquiries.

We have a court reporter that is here with us who will prepare a transcript of the hearing, which will be included in the record for these proceedings, so that your comments can be considered by all members of the Commission. When it is ready, the transcript also will be available for public view on the Department of Public Service website. Today's hearing is not a question and answer session. It's a forum for you to provide your comments to the Commission.

If you do not wish to speak at today's hearing, but you would like your views included in the record, there are various other ways to submit comments. So even if you know somebody else that you want to let them know, you know, they weren't able to make it. They can submit comments in other ways.

And regardless of how they're submitted, the comments are given equal consideration.

So they can be submitted on the department's website, which is www.dps.ny.gov, by regular mail to The Honorable Michelle Phillips, who is the Secretary to the Public Service Commission at 3 Empire State Plaza, Albany, New York, 12223, or by a toll-free opinion line that accepts callers 24 hours a day, and the number for that is 1-800-335-2120. Based on the time when the case -- in order for the Commission to consider the comments before it issues a determination on the rate proposals, the comments should be submitted by November 21st, 2025.

And if you want to make a statement here today, if you haven't done so already, you'd have to just sign up with a registration card, and we'll take your comments in the order in which we receive the registered speakers.

When I call you up, I ask that you please speak slowly and clearly so that the Court reporter can accurately capture your statement for the record. And we ask that you please be respectful for other people. And if you have cell phones,

silence your cell phones so that we don't get interrupted. When you come up to speak, please state your name, spell your name for the record, and then you can give your statement.

So what I'm going to do is go to our first speaker, who is Daniella [sic] Rodriguez.

ALJ PLANTY: And there's a microphone right there that should be on and everything.

MS. RODRIGUEZ: Is it?

ALJ COSTELLO: Yes.

MS. RODRIGUEZ: Good afternoon. So it's Dariella, D-A-R-I-E-L-L-A Rodriguez, R-O-D-R-I-G-U-E-Z.

REPORTER: Could you spell the first name one more time?

MS. RODRIGUEZ: D-A-R-I-E-L-L-A.

REPORTER: Thank you.

MS. RODRIGUEZ: Thank you. So I'm here, I do work at an organization in the Bronx that called The Point CDC in Hunts Point where we have been working with Con Ed and have been working on resiliency projects. And so we've had an eye on not just like some of the bigger projects, but also like

the -- the things that affect everyday people. And we've been talking to our neighbors and our members. And I -- I actually think a lot more of them would be here today if this wasn't so hard to get to this site.

But there's a lot of concern about affordability, obviously. So first, a lot of people in our community are already struggling to pay their electric bills. We have a lot of people in our community that are very vulnerable to heat, illness, and all those kind of things who can't even turn on their air conditioners. We're talking about seniors and people with small children because of the affordability and the -- and -- and the -- high cost of electric charges. And I think that we just -- we came together as a community to think of two things.

One, it is already too expensive, and we're concerned about the actual, like, any rate costing more. So first choice would be, please do not do that. But then the second thing is that there are things that people in our community support like -- transitioning to more renewable energy and projects that actually clean up our air. We have the

highest concentrated rates of asthma, power plants, and -- and dirty power. Infrastructure have a lot to do with that in our neighborhood. And so people are -- would be excited to pay a little more to invest in that transition, but not pay more for the list of things that Con Ed is currently considering.

And there's just -- the same -- the same people who cannot afford the Con Ed prices are the same people who live in the neighborhoods where the power plants are, are the same people who would continue to suffer from those impacts.

So to wrap it up, we really are concerned, many people that we have gathered in our organization -- we serve hundreds of people -- they're very concerned. We've spoken about them. They actually made sure that we could come here today on their behalf. We have been gathering comments from them and asking them to submit.

But for the most part, if we were forgiving arrears or thinking about that or thinking about the vulnerable people who already owe money or can't afford it, and some of this investment was going there, I think that we would get more community

support. But currently, the rate hikes don't actually produce anything that people think is worth paying more on already very expensive bill.

So I'll keep it short. And I think that's pretty much all I have to share.

ALJ COSTELLO: Thank you.

Our next speaker -- our next speaker is Sharon Behnke.

MS. BENKHE: Do I really need to use the microphone?

ALJ COSTELLO: I think it makes it easier for people to hear --

ALJ PLANTY: And the Court Reporter for the record.

ALJ COSTELLO: And the court reporter, too.

ALJ PLANTY: It should be on.

MS. BEHNKE: Okay.

ALJ PLANTY: Thank you

MS. BEHNKE: Thank you.

ALJ COSTELLO: I don't know how well they're working.

MS. BEHNKE: All right. My name is

Sharon Behnke. You said -- you need me to spell it?

ALJ COSTELLO: Yes, please. For the record.

MS. BEHNKE: Oh, B-E-H-N-K-E.

ALJ COSTELLO: Thank you.

MS. BEHNKE: First name, Sharon. And I am a resident of the Bronx. I live at 801 Neill Avenue, apartment 25-K. And I'm a customer of Con Ed, and I have been for many years, many years. And my point is, I'm also a retired senior citizen living on Social Security and a pension. And I just was reviewing the actual cost of living Social -- Social Security cost of living rate increases over the last few years to compare it to the Con Ed rate hikes that I'm -- well, that resulted in the amount of the bill I've been paying for the last three years.

And based on my very quick computations, it looks like the rate hike from '22 to '23 went up about 15 percent. And that's -- I'm on a budget plan. I sign up for the budget plan each year. And then from '23 to '23, it went up 13-and-a-half percent. And then for 23, 24 -- let me see that. '22 to '23 was 15 percent, and '23 to '24 was

13-and-a-half percent, and then to 2025 --

ALJ COSTELLO: Well, sorry for the interruption. Could you hold just a little bit closer? It's picking up a little low.

MS. BEHNKE: Oh. Okay.

ALJ COSTELLO: That's good. That's good. Thank you.

MS. BEHNKE: Sorry.

ALJ COSTELLO: Thank you. You're fine.

MS. BEHNKE: Basically, I guess, the cost of living increases I did -- I looked up was 8.7 percent increase in '23, 3.2 percent in '24, and 2.5 percent in 2025.

So based on the fact that my income hasn't been increasing like me -- the cost of living for Con -- my electricity, and that's -- the electricity bill, I'm fortunate enough to be in an apartment. My heat is not include -- heat is covered with my rent. My rent is rent stabilized. So I'm in good shape that way. But the -- the -- the electricity bill just keeps rising, I think at an unreasonable rate.

Even though I have appreciated the fact that Con Edison has attempted to accommodate -- provides more consumer information about how to save energy, what's happening with the heat, and how to conserve energy as much as possible, I haven't had any loss of -- electricity. So I can't say that my service has deteriorated at all. I'm just saying that the cost of the electricity, I think is -- is increasing at a much faster rate than my income.

And I guess that's -- that's it.

ALJ COSTELLO: Thank you for your comment.

Our next speaker is Leslie Vasquez.

MS. VASQUEZ: Hi, everybody. Can you hear me?

ALJ COSTELLO: Yes.

MS. VASQUEZ: So that's Leslie, L-E-S-L-I-E, Vasquez, V-A-S-Q-U-E-Z.

ALJ COSTELLO: Thank you.

MS. VASQUEZ: I am a community organizer at The Point CDC alongside Dariella, and we are part of a coalition called Peak. And our goal is to retire power plants.

So when Con Ed released that they were going to increase utility bills at the beginning of this year, we did a deep dive on what the allocation was going to be for. And less than 25 percent of those funds are going to be for newer renewable projects. Con Ed has been promising that we are going to get cleaner energy and cleaner projects for years, and we still haven't seen it. So the fact that they said that we are going to increase our utility bills even more when we're not going to see any of those projects, it's a little bit alarming. Everything else that they justified a higher cost for was because of higher property taxes because they needed to pay their workers insurance and things that don't pertain to customers like us in the Bronx.

The Bronx already has one of the highest asthma rates in the entire country, so allowing those funds to continue to go to power plants and to dirty fossil fuels and continue to pollute our air is just us paying for poor health. And that is not what we're asking for. We never asked to have a higher bill. We never asked to have poor health or to continue those projects that harm

our community.

We led a workshop where we gathered community members so that they can come together to raise their concerns. And a lot of them said that a higher utility bill would mean that they wouldn't pay for groceries; that a higher utility bill would mean that their children would have to sacrifice something that they're already paying for because a bill is going to be about an average of $50 more a month. And while that not -- that may not be much for some, for others that are already struggling, to add on an even bigger expense is again, not indicative of community.

So we ask that one, if the Public Service Commission does have the power to be able to control the monopoly that Con Ed is, then we ask that, please, 11.4 percent is extremely high. And if not 11.4, can we reduce -- we don't have to approve this, but we also ask that if that percentage can't be reduced, then the allocation of those funds to be different. We do want more energy assistance programs. We do want more resources for the communities that are already struggling with high

utility bills.

And again, Con Ed is not doing anything in the State or Community. It is not providing any benefit by having a higher energy bill. And we ask that the Public Service Commission limit them to a certain extent. Because again, it's not mandatory for them to have higher bills because they have higher property taxes, or because they have higher percentages or because they want to profit even more.

So I'll just leave that by saying that our community has come together individually. Again, not here, but we have a lot of concerns about the future of our community and the future of our health because of Con Ed. Thank you.

ALJ COSTELLO: Thank you. Is there anyone else that came in since we started that would like to make a comment? No. Okay. So what I'm going to do -- it's 1:18. We'll go off the record. I'll come back on at around 1:30. Off the record.

(Off the record)

(On the record)

ALJ COSTELLO: Okay. We've opened up

the session earlier, and we're now -- it's a half an hour later. We were waiting to see if we had any more speakers. We had three people that gave comments this afternoon, and we have no further members of the public who have come in to provide a statement.

So with that, we're going to finish up our hearing, and just remind you, if you need to submit any comments or if you have people that you know that want to submit comments, they can do that in one of various ways. You can do it by email. I'm sorry, not by email. They can do it over the internet on our website, www.dps.ny.gov. You can mail comments to the Department of Public Service, The Honorable Michelle Phillips is the Secretary for the Public Service Commission, 3 Empire State Plaza, Albany, New York 12223. And comments may be left on a toll-free opinion line at 1-800-335-2120.

In addition, if people are interested, we have another hearing this evening at 6 p.m. at this location and then later in the month, on July 22nd and July 23rd at 6 p.m., there will be further public statement hearings at the Jewish Community

Center of Staten Island.

And with that, I just want to thank those people that have come out to make comments and appreciate your participation. And we're going to go off the record.

(The hearing concluded at 1:35 P.M.)

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I, JOHN SHEFFIELD, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 17, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 16th day of July, 2025.

JOHN SHEFFIELD, Reporter